CITY OF CARNATION

REGULAR MEETING OF THE CARNATION CITY COUNCIL

PROPOSED AGENDA

City Council:
Kim Lisk, *Mayor*
Jim Ribail, *Deputy Mayor*
Adair Hawkins
Tim Harris
Dustin Green

City Staff:
Mary Madole, *Acting City Manager, City Clerk*
Jean Lin, *City Planner*
Kelly Russell, *City Treasurer*
Bill Ferry, *Public Works Superintendent*
Jorge Garcia, *City Engineer*
Zach Lell, *City Attorney*

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DATE: **SEPTEMBER 21, 2021** TIME: **7:00 PM**

LOCATION: Carnation City Hall, Council Chambers, 4621 Tolt Ave

JOIN ONLINE: **https://bit.ly/210921cc** or call **509.724.0556, Conference ID: 845 740 325#**

CALL TO ORDER: Mayor Kimberly Lisk

PLEDGE OF ALLEGIANCE: Councilmember Dustin Green

ROLL CALL: City Clerk Mary Madole

APPROVAL OF AGENDA: Mayor Kimberly Lisk

CONSENT AGENDA:

A. Approval of Minutes of the Regular Meeting held September 7, 2021.
B. Approval of Minutes of the Special Meeting held September 10, 2021.
C. Approval of Claims Check Vouchers numbered 36439 – 36466 in the amount of $ 188,518.53. *(Claims vouchers and invoices to be reviewed by Councilmember Green)*

REPORTS & REQUESTS: Mayor, City Council, & Council Committees.

STAFF & AFFILIATE REPORTS: City Manager, Department Heads, Other.

CITIZEN COMMENTS & REQUESTS: Public comment on meeting agenda items or other issues of note or concern.

- Lisa Yeager, Executive Director of the Sno-Valley Senior Center. *(estimated 10-15 minutes)*

AGENDA BILLS:

AB21-48R **Ordinance.** Providing for the issuance and sale of a limited tax general obligation bond in the principal amount of [$2,100,000] to be used to finance the acquisition of land and other capital projects; fixing or setting parameters with respect to certain terms and covenants of the bond; and providing for other related matters.

EXECUTIVE SESSION: To evaluate the qualifications of an applicant for public employment.

AB21-50 **Motion.** Authorizing the Mayor to execute a Professional Services Agreement for City Manager Services.

AB21-51 **Motion.** Approving Task Order 8 with HNTB Corporation for engineering and construction management services for the Brumbaugh Water Main Replacement Project in an amount not to exceed $125,807.

ADDITIONAL BUSINESS & DISCUSSION ITEMS:

1. Tolt Commons Plaza and Downtown Public Parking Plan Advisory Committee
2. Salary Commission next steps.
3. Draft Employee vaccination policy.
4. Other.
5. Review of preliminary City Council meeting agenda items.

ADJOURNMENT.

For inquires and/or assistance regarding how to use the City's online meeting format please visit https://www.carnationwa.gov/teams, email clerk@carnationwa.gov , or call (425) 549-0403.

Carnation City Council
Agenda Process Guidelines

Call to Order	Carnation City Council meetings begin at 7:00 PM on the first and third Tuesdays of each month. Meetings are held in the Council Chambers at Carnation City Hall, 4621 Tolt Avenue.
Approval of Agenda	Councilmembers may move or change items on the agenda to allow for additional consideration or to accommodate attendees. The Council may also add and take action on other items not listed on the Proposed Agenda or remove items from the agenda.
Consent Agenda	The Consent Agenda consists of items which have previously been discussed by the Council, matters which are based on information delivered to the Council by administration that can be reviewed by a Councilmember without further explanation, or items which are so routine or non-technical in nature that passage is likely.
Citizen Comments & Requests	The public is provided an opportunity to give comment to the Council on the City's annual budget, meeting agenda items, or other issues of note or concern. To address the Council, please write your name on the sign-in sheet and indicate the subject of your comments. Indicate if you would prefer to make your remarks during a particular agenda item. Please wait for the Chair to recognize you; then approach the podium, state your name, legal address, and the nature of the matter you wish to bring before the Council. Members of the public will generally be limited to a maximum of three minutes for their comments. Neither the Council nor staff should be expected to respond during the meeting to citizen requests except in an emergency. In general, most service requests or concerns will not be discussed during the meeting but referred to staff for review and/or action. Requests for action or information should be submitted in writing to the City Clerk. Forms are available in the front office at City Hall.
Public Hearings	Public Hearings are held to receive public comment on important matters before the Council. Please use the sign-up sheet(s) at the agenda table if you wish to speak. You are welcome to offer your comments verbally or in writing after being recognized by the Mayor; please approach the podium and provide your name and address for the record. After all persons have spoken, the hearing is closed to public comment, and the Council will proceed with deliberation and decision-making.
Executive Sessions	Executive Sessions may be held by the Council to discuss matters where confidentiality is required for the public interest, including issues of national security, property acquisition, contract bid negotiations, certain personnel issues, and lawsuits. An Executive Session is the only type of Council meeting permitted by law to be closed to the public. Executive Sessions are governed by RCW 42.30.110.

CITY OF CARNATION

MINUTES OF THE REGULAR CITY COUNCIL MEETING
September 7, 2021

CALL TO ORDER: Mayor Kimberly Lisk called the regular meeting of the Carnation City Council to order at 7:00 PM on September 7, 2021, in the Council Chambers at Carnation City Hall and led the Pledge of Allegiance.

ROLL CALL: Mayor Kim Lisk, Deputy Mayor Jim Ribail, Councilmember Tim Harris, and Acting City Manager/City Clerk Mary Madole and citizens in attendance in the Council Chambers at Carnation City Hall; Councilmember Adair Hawkins, City Planner Jean Lin, Treasurer Kelly Russell, Public Works Superintendent Bill Ferry, and citizens in attendance by audio/videoconference. Councilmember Dustin Green was absent and excused.

APPROVAL OF AGENDA: MOTION BY DEPUTY MAYOR RIBAIL AND SECOND BY COUNCILMEMBER HARRIS TO APPROVE THE AGENDA AS PRESENTED. MOTION PASSED UNANIMOUSLY (4-0).

CONSENT AGENDA: MOTION BY COUNCILMEMBER HARRIS AND SECOND BY DEPUTY MAYOR RIBAIL TO ADOPT THE CONSENT AGENDA AS PRESENTED. MOTION PASSED UNANIMOUSLY (4-0); THE FOLLOWING ITEMS WERE APPROVED:

- Minutes of the Regular Meeting held August 17, 2021.
- Minutes of the Special Meeting held August 20, 2021.
- Minutes of the Special Meeting held August 24, 2021.
- Claims Check Vouchers numbered 36395 – 36438 in the amount of $451,840.72.
- August 2021 Payroll Direct Deposits and Checks numbered 14554 – 14567 in the amount of $101,561.30.

REPORTS & REQUESTS: Councilmember Hawkins reported that the Snoqualmie Valley Transit Shuttle is using the library for passenger pickup and drop off during road construction downtown. The evacuation exercise on September 25th will include an online presentation with Teams, family group hikes to the evacuation site, and a raffle.

Councilmember Harris reported that he and Councilmember Green held Coffee with Council on August 28th and heard comments about speeding on E Morrison, the timing of the signal on Entwistle, the Tolt Commons Committee, and using environmentally friendly options for heating and cooling of the new city hall.

STAFF REPORTS: Acting City Manager Madole reported that the location of bus shelter across from city hall has part of its foundation in the Tolt Ave CBD project area and is not in a good location for the shuttle to load passengers so will likely need to be relocated.

City Planner Lin reported that the public review draft of the Parks Recreation and Open Space (PROS) Plan will be released in September.

AGENDA BILLS:

AB21-41R: ORDINANCE 944. ESTABLISHING A SALARY COMMISSION. Mayor Lisk read the text of the proposed ordinance by title. MOTION BY DEPUTY MAYOR RIBAIL AND SECOND BY COUNCILMEMBER HARRIS TO SPECIFY AN INTEREST RATE NOT TO EXCEED 3% AND APPROVE AN ORDINANCE ESTABLISHING A SALARY COMMISSION IN ACCORDANCE WITH RCW 35.21.015 TO REVIEW AND SET THE SALARIES FOR ELECTED OFFICIALS OF THE CITY; AMENDING CHAPTER 2.20 CMC COMPENSATION OF MAYOR AND COUNCILMEMBERS TO REFLECT FUTURE ACTIONS OF

THE SALARY COMMISSION. MOTION PASSED UNANIMOUSLY (4-0); Ordinance No. 944 assigned.

ADDITIONAL BUSINESS & DISCUSSION ITEMS:

Comprehensive Plan Update: City Planner Lin delivered a presentation providing an overview of the Washington State Growth Management Act (GMA) and the goals and elements of the Carnation Comprehensive Plan which has its next GMA-required periodic update due by June 2024. Deputy Mayor Ribail said that the census data doesn't reflect the new patterns of people working from home in the post-pandemic world. PSRC Executive Director Josh Brown will be attending the SVGA meeting in November, and he would like City Planner Lin to attend too.

Other: Coffee with Council was rescheduled to September 18th with Deputy Mayor Ribail and Mayor Lisk. The community meet-and-greet for the city manager candidates is the evening of September 9th and interviews on September 10th.

Discussion took place about a COVID-19 vaccination policy for employees and majority agreement was reached to consider adoption of a policy.

ADJOURNMENT: There being no further business before the City Council the meeting adjourned by common consent at 8:17 PM.

Approved at the regular meeting of the Carnation City Council on September 21, 2021.

_____
MAYOR, KIMBERLY LISK

_____
CITY CLERK, MARY MADOLE

CITY OF CARNATION

MINUTES OF THE SPECIAL CITY COUNCIL MEETING
September 10, 2021

CALL TO ORDER: Mayor Kimberly Lisk called the online special meeting of the Carnation City Council to order at 8:00 AM on September 10, 2021 at Miller's, 4547 Tolt Ave, Carnation.

ROLL CALL: Mayor Kim Lisk, Deputy Mayor Jim Ribail, Councilmember Tim Harris, Councilmember Adair Hawkins, Councilmember Dustin Green, Acting City Manager/City Clerk Mary Madole, City Planner Jean Lin, Treasurer Kelly Russell, Public Works Superintendent Bill Ferry, Permitting Coordinator Becky Buelna, and citizens in attendance.

The Councilmembers, staff, and community members separated into three panels and conducted interviews of two candidates for the position of city manager. The candidates departed after lunch and the community and staff interview panel members provided oral reports to Council about their interview sessions. The Councilmembers adjourned to an executive session at 3:00 PM to evaluate the qualifications of the applicants for public employment. The executive session was expected to last about an hour with potential action being taken afterwards. The executive session ended at 4:00 PM. Consensus was reached to select "Candidate A" for the position of city manager and direct the Mayor to negotiate a professional services agreement for Council approval as an "at-will" employee with a salary of $150,000 per year; vacation accrual at the rate of 3 weeks per year, with a starting additional balance of 5 days vacation in the leave bank; sick leave, holidays, and medical/dental/vision coverage the same as for other City employees; a $5,000 stipend for relocation costs, which must be repaid to the City on a pro-rata basis should employment be terminated within the first 2 years; an attempt to provide 60 days notice if employment is terminated by the employee; three months severance with medical benefits if employment is terminated by the City Council without cause under the "at will" provision; and a provision requiring an annual performance review by the City Council.

ADJOURNMENT: The special meeting adjourned by common consent at 4:15 PM.

Approved at the regular meeting of the Carnation City Council on September 21, 2021.

_____
MAYOR, KIMBERLY LISK

_____
CITY CLERK, MARY MADOLE

CITY OF CARNATION

CLAIMS VOUCHER
CERTIFICATION AND APPROVAL

We, the undersigned members of the Carnation City Council, do hereby attest that claims check numbers **36439** through **36466** in the amount of **$188,518.53** have been approved for payment by motion of the Carnation City Council at a regular meeting this 21st day of September, 2021.

FUND#	FUND NAME	PURPOSE	AMOUNT	
001	GENERAL	ACCOUNTS PAYABLE	$	51,911.10
101	STREET	Sep-21	$	2,802.93
106	CEMETERY		$	4,439.42
107	EQUIPMENT REPLACEMENT		$	-
108	PARK DEVELOPMENT		$	278.43
109	TRAFFIC IMPACT FEE		$	-
201	LTGO BOND REDEMPTION FUND		$	-
301	CAPITAL IMPROVEMENT		$	55,531.87
302	CAPITAL FACILITIES		$	-
401	WATERWORKS OPERATING		$	60,359.05
402	WATER CAPITAL REPLACEMENT		$	438.60
404	WATER BOND REDEMPTION		$	-
406	LANDFILL ASSURANCE		$	328.06
407	SEWER DEBT SERVICE		$	-
408	SEWER CAPITAL PROJECTS		$	11,925.48
633	TRUST		$	503.59
		TOTAL CLAIMS	$	188,518.53

Jim Ribail, Deputy Mayor
Finance & Operations Committee

Invoices, Register & Voucher Review by:

/ /

Dustin Green, Councilmember Date

Kim Lisk, Mayor
Finance & Operations Committee

Pursuant to CMC 3.12.030, the blanket voucher is to be signed by at least two members of the council committee after council approval.

Voucher Directory

Fiscal: : 2021 - September
Council Date: : 2021 - September - Sep 21 Claims

Vendor	Number	Reference	Account Number	Description	Amount
AM TEST, INC					
	36441		**2021 - September - Sep 21 Claims**		
		123236			
			401-000-534-60-41-03	Water Testing	$100.00
		Total 123236			**$100.00**
	Total 36441				**$100.00**
Total AM TEST, INC					**$100.00**
AQSEPTENCE GROUP INC					
	36442		**2021 - September - Sep 21 Claims**		
		90236376/80200982			
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$892.19
		Total 90236376/80200982			**$892.19**
	Total 36442				**$892.19**
Total AQSEPTENCE GROUP INC					**$892.19**
Automatic Wilbert Vault Co., Inc.					
	36443		**2021 - September - Sep 21 Claims**		
		73601			
			Gould		
			106-000-536-20-41-01	Prof Svcs - Plot O/C & Markers	$4,280.00
		Total 73601			**$4,280.00**
	Total 36443				**$4,280.00**
Total Automatic Wilbert Vault Co., Inc.					**$4,280.00**
Bank of America					
	36440		**2021 - September - Sep 21 Claims**		
		2495...081921			
			001-000-513-10-41-01	Prof Svc: City Mgr Search	$176.62
			001-000-514-20-49-01	Training/Tuition	$50.00
			001-000-518-10-31-00	Office/Operating Supplies	$90.40
			001-000-518-10-31-00	Office/Operating Supplies	$57.35
			001-000-518-10-31-00	Office/Operating Supplies	$26.46
			001-000-518-10-41-04	Computer Network Support	$81.24
			001-000-518-10-47-05	Utilites: Combined Water/Sewer	$74.79
			001-000-558-50-31-00	Office/Operating Supplies	$90.40
			001-000-558-50-31-00	Office/Operating Supplies	$26.46
			001-000-558-50-31-00	Office/Operating Supplies	$57.35

Vendor	Number	Reference	Account Number	Description	Amount
			001-000-558-50-41-04	Computer Network Support	$81.24
			001-000-558-50-41-20	City Manager Search	$176.62
			001-000-558-50-47-05	Utilities: Combined Water/Sewer	$74.79
			001-000-576-80-31-00	Operating Supplies	$214.75
			001-000-576-80-31-00	Operating Supplies	$57.35
			001-000-576-80-31-00	Operating Supplies	$58.02
			001-000-576-80-35-00	Small Tools & Equipment	$106.68
			001-000-576-80-35-00	Small Tools & Equipment	$131.96
			001-000-576-80-47-01	Utilities: Water	$287.66
			001-000-576-80-47-05	Utilities: Water/Sewer Combine	$74.79
			001-000-576-80-48-01	Repairs/Maintenance-Equipment	$42.82
			001-000-576-80-48-05	Vehicle Repairs & Maintenance	$22.83
			001-000-576-80-48-05	Vehicle Repairs & Maintenance	$43.75
			101-000-542-30-31-00	Operating Supplies	$78.92
			101-000-542-30-31-00	Operating Supplies	$58.02
			101-000-542-30-31-00	Operating Supplies	$57.35
			101-000-542-30-35-00	Small Tools & Equipment	$131.96
			101-000-542-40-31-00	OP Supplies-Storm Drainage	$90.40
			101-000-542-40-31-00	OP Supplies-Storm Drainage	$26.49
			101-000-542-40-31-00	OP Supplies-Storm Drainage	$26.49
			101-000-542-40-31-00	OP Supplies-Storm Drainage	$58.02
			101-000-542-40-35-00	Small Tool & Equipment	$131.96
			101-000-542-40-41-05	Computer Network Support	$81.24
			101-000-542-40-41-22	City Mgr Search	$176.62
			101-000-542-40-47-05	Utilities: Combined Water/Sewer	$74.79
			101-000-542-40-48-02	Vehicle Repairs & Maintenance	$22.83
			101-000-542-40-48-02	Vehicle Repairs & Maintenance	$43.75
			101-000-542-90-48-01	Vehicle Repair & Maintenance	$22.83
			101-000-542-90-48-01	Vehicle Repair & Maintenance	$43.75
			101-000-543-10-41-04	Computer Network Support	$81.24
			101-000-543-10-41-11	Prof Svc: City Mgr Search	$176.62
			101-000-543-30-31-00	Office/Operating Supplies	$26.46
			101-000-543-30-31-00	Office/Operating Supplies	$90.40
			101-000-543-50-47-05	Utilities: Combined Water/Sewer	$74.79
			106-000-536-20-31-00	Operating Supplies	$58.02
			106-000-536-20-31-00	Operating Supplies	$26.46
			106-000-536-20-47-01	Utilities: Water	$74.79
			108-000-594-76-61-01	Memorial Park Improvements	$139.21
			108-000-594-76-61-01	Memorial Park Improvements	$139.22
			401-000-514-30-41-34	Utility Lien Recording Fee ~ Water	$168.00
			401-000-514-30-41-35	Utility Lien Recording Fee ~ Sewer	$168.00
			401-000-534-10-31-00	Office/Operating Supplies	$90.40
			401-000-534-10-31-00	Office/Operating Supplies	$26.49
			401-000-534-10-41-06	Prof Svc: Computer Network Support	$81.24
			401-000-534-10-41-22	City Manager Search	$176.62
			401-000-534-10-42-02	Communications/Telephone	$5.00

Vendor	Number	Reference	Account Number	Description	Amount
			401-000-534-10-47-05	Utiilties: Combined Water/Sewer	$74.79
			401-000-534-10-47-05	Utiilties: Combined Water/Sewer	$90.77
			401-000-534-60-48-00	Vehicle Repairs & Maintenance	$43.75
			401-000-534-60-48-00	Vehicle Repairs & Maintenance	$22.83
			401-000-534-80-31-00	Operating Supplies	$26.49
			401-000-534-80-31-00	Operating Supplies	$58.02
			401-000-534-80-31-00	Operating Supplies	$57.35
			401-000-534-80-31-02	Operating Supplies: Chlorine	$5.98
			401-000-534-80-34-02	R&M Services & Supplies - Shop	$3.90
			401-000-534-80-34-02	R&M Services & Supplies - Shop	$25.60
			401-000-534-80-35-00	Small Tools & Equipment	$131.96
			401-000-535-10-31-00	Office/Operating Supplies	$26.46
			401-000-535-10-31-00	Office/Operating Supplies	$90.40
			401-000-535-10-41-06	Prof Svc: Computer Network Support	$81.24
			401-000-535-10-41-23	City Manager Search	$176.62
			401-000-535-10-42-02	Communications: Telephone	$5.00
			401-000-535-10-47-05	Utilities: Combined Water/Sewer	$90.77
			401-000-535-10-47-05	Utilities: Combined Water/Sewer	$74.79
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$57.60
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$104.04
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$21.69
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$10.88
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$197.92
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$31.67
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$221.18
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$83.32
			401-000-535-60-41-03	Emergent Conveyance System Repairs	$83.48
			401-000-535-60-48-00	Vehicle Repairs & Maintenance	$22.83
			401-000-535-60-48-00	Vehicle Repairs & Maintenance	$43.75
			401-000-535-80-31-00	Operation Supplies	$57.35
			401-000-535-80-31-00	Operation Supplies	$58.02
			401-000-535-80-35-00	Small Tools & Equipment	$131.96
			401-000-535-80-47-01	Utilities: Water	$79.24
			406-000-553-70-31-00	Office/Operating Supplies	$26.46
			406-000-553-70-31-00	Office/Operating Supplies	$58.02
		Total 2495...081921			**$7,208.84**
	Total 36440				**$7,208.84**
Total Bank of America					**$7,208.84**

Vendor	Number	Reference	Account Number	Description	Amount
BENJAMIN THOMPSON					
	36444		**2021 - September - Sep 21 Claims**		
		Aug'21 Emergency Preparedness Svcs			
			001-000-525-60-48-01	Evacuation Site Maintenance/EM Coordination	$687.50
		Total Aug'21 Emergency Preparedness Svcs			**$687.50**
	Total 36444				**$687.50**
Total BENJAMIN THOMPSON					**$687.50**
BUILDERS EXCHANGE of WASHINGTON, INC					
	36445		**2021 - September - Sep 21 Claims**		
		1069955			
		Total 1069955			
	Total 36445				
Total BUILDERS EXCHANGE of WASHINGTON, INC					
Carnation Post Office ~ Utility Bills					
	36439		**2021 - September - Sep 21 Claims**		
		Sep2021Bills			
			101-000-542-40-42-01	Communications ~ Postage	$89.52
			401-000-534-10-42-01	Communications/Postage	$89.52
			401-000-535-10-42-01	Communications: Postage	$89.52
			406-000-553-70-42-01	Postage	$89.50
		Total Sep2021Bills			**$358.06**
	Total 36439				**$358.06**
Total Carnation Post Office ~ Utility Bills					**$358.06**
City of Snoqualmie ~ Building Official Svcs					
	36446		**2021 - September - Sep 21 Claims**		
		0067603			
			Jun'21 Svcs		
			001-000-524-20-41-19	Building Inspections (ILA)	$2,078.29
		Total 0067603			**$2,078.29**
		0067609			
			Jul'21 Svcs		
			001-000-524-20-41-19	Building Inspections (ILA)	$1,171.06
		Total 0067609			**$1,171.06**
	Total 36446				**$3,249.35**
Total City of Snoqualmie ~ Building Official Svcs					**$3,249.35**
Daily Journal of Commerce					
	36447		**2021 - September - Sep 21 Claims**		
		3371210			
			402-000-594-34-64-09	SCADA/Telemetry	$219.30
			402-247-594-34-41-01	Design/Engineering	$219.30

Vendor	Number	Reference	Account Number	Description	Amount
			408-000-594-35-64-01	SCADA/Telemetry	$219.30
		Total 3371210			**$657.90**
	Total 36447				**$657.90**
Total Daily Journal of Commerce					**$657.90**
DAVID KIRTLEY					
	36448		**2021 - September - Sep 21 Claims**		
		669001.0 Refund			
			816102-0180		
			633-000-589-90-01-00	Utility Bill Refund	$225.88
		Total 669001.0 Refund			**$225.88**
	Total 36448				**$225.88**
Total DAVID KIRTLEY					**$225.88**
Davidson-Macri Sweeping Inc					
	36449		**2021 - September - Sep 21 Claims**		
		218805			
			8.26.21 Rte 1 Sweeping		
			101-000-542-40-41-06	Street Cleaning	$301.83
		Total 218805			**$301.83**
		218806			
			8.26.21 Rte 3 Sweeping		
			101-000-542-40-41-06	Street Cleaning	$268.29
		Total 218806			**$268.29**
	Total 36449				**$570.12**
Total Davidson-Macri Sweeping Inc					**$570.12**
HEMISPHERE SOLUTIONS					
	36450		**2021 - September - Sep 21 Claims**		
		4598-MSP			
			001-000-518-10-41-04	Computer Network Support	$647.47
			001-000-558-50-41-04	Computer Network Support	$322.93
			101-000-542-40-41-05	Computer Network Support	$0.40
			101-000-543-10-41-04	Computer Network Support	$191.74
			401-000-534-10-41-06	Prof Svc: Computer Network Support	$427.88
			401-000-535-10-41-06	Prof Svc: Computer Network Support	$427.88
		Total 4598-MSP			**$2,018.30**
	Total 36450				**$2,018.30**
Total HEMISPHERE SOLUTIONS					**$2,018.30**

Vendor	Number	Reference	Account Number	Description	Amount
InvoiceCloud					
	36451		**2021 - September - Sep 21 Claims**		
		1354-2021_8			
			101-000-542-40-41-29	Electronic Payment/Presentation Processing Fees	$154.09
			401-000-534-10-41-35	Electronic Payment/Presentation Processing Fees	$154.09
			401-000-535-10-41-29	Electronic Payment/Presentation Processing Fees	$154.09
			406-000-553-70-41-23	Electronic Payment/Presentation Processing Fees	$154.08
		Total 1354-2021_8			**$616.35**
	Total 36451				**$616.35**
Total InvoiceCloud					**$616.35**
JEAN LIN					
	36452		**2021 - September - Sep 21 Claims**		
		9.9.21 Reimbursement ~ Table Clothes			
			001-000-518-10-31-00	Office/Operating Supplies	$13.15
		Total 9.9.21 Reimbursement ~ Table Clothes			**$13.15**
	Total 36452				**$13.15**
Total JEAN LIN					**$13.15**
JOHNSTON GROUP					
	36453		**2021 - September - Sep 21 Claims**		
		1209			
			001-000-511-70-41-03	Prof Svc-Lobbyists	$3,500.00
		Total 1209			**$3,500.00**
	Total 36453				**$3,500.00**
Total JOHNSTON GROUP					**$3,500.00**
KC Finance - INET Billing					
	36454		**2021 - September - Sep 21 Claims**		
		11010406			
			001-000-518-10-42-04	Communications: I-NET,Wan,Web	$52.50
			001-000-558-50-42-04	Communications: INET/Web	$61.50
			001-406-521-20-42-04	Communications/INET	$71.25
			101-000-542-40-42-04	Communications: INET/Web	$3.75
			101-000-543-10-41-04	Computer Network Support	$33.75
			401-000-534-10-42-04	Communications: INET/Web	$76.12
			401-000-535-10-42-04	Communications: INET/Web	$76.13
		Total 11010406			**$375.00**
	Total 36454				**$375.00**
Total KC Finance - INET Billing					**$375.00**
KC Finance - Radio Comm Services					
	36455		**2021 - September - Sep 21 Claims**		
		17578			
			001-000-525-60-49-00	Emergency Radio Service Fee	$31.80
			101-000-525-60-49-00	Emergncy Radio Service Fee	$31.80

Vendor	Number	Reference	Account Number	Description	Amount
			401-000-525-60-49-00	Emergency Radio Service Fee	$63.58
		Total 17578			**$127.18**
	Total 36455				**$127.18**
Total KC Finance - Radio Comm Services					**$127.18**
KC Finance - Sewer Facility Ops					
	36456		**2021 - September - Sep 21 Claims**		
		30032338			
			401-000-535-60-41-20	KC Facility Operating Costs	$54,617.61
		Total 30032338			**$54,617.61**
	Total 36456				**$54,617.61**
Total KC Finance - Sewer Facility Ops					**$54,617.61**
KIM LISK					
	36457		**2021 - September - Sep 21 Claims**		
		9.8.21 Costco Reimbursement			
			001-000-513-10-41-01	Prof Svc: City Mgr Search	$12.05
			001-000-558-50-41-20	City Manager Search	$12.03
			101-000-542-40-41-22	City Mgr Search	$12.03
			101-000-543-10-41-11	Prof Svc: City Mgr Search	$12.03
			401-000-534-10-41-22	City Manager Search	$12.03
			401-000-535-10-41-24	City Mgr Search	$12.03
		Total 9.8.21 Costco Reimbursement			**$72.20**
	Total 36457				**$72.20**
Total KIM LISK					**$72.20**
King County Sheriff's Office ~ Contracted Services					
	36458		**2021 - September - Sep 21 Claims**		
		21-0528			
			Aug'21 Svcs		
			001-406-521-10-41-19	Police Contracted Services ~ King County	$39,480.50
		Total 21-0528			**$39,480.50**
	Total 36458				**$39,480.50**
Total King County Sheriff's Office ~ Contracted Services					**$39,480.50**

Vendor	Number	Reference	Account Number	Description	Amount
KPG					
	36459		**2021 - September - Sep 21 Claims**		
		8-16921			
			301-000-543-10-41-06	Prof Svc ~ CM Tolt Avenue/CBD	$55,531.87
		Total 8-16921			**$55,531.87**
	Total 36459				**$55,531.87**
Total KPG					**$55,531.87**
Lynn Moberly					
	36460		**2021 - September - Sep 21 Claims**		
		Aug'21 Prosecution Services			
			001-406-515-41-41-02	Legal/Prosecutor	$1,338.92
		Total Aug'21 Prosecution Services			**$1,338.92**
	Total 36460				**$1,338.92**
Total Lynn Moberly					**$1,338.92**
Mountain Mist					
	36461		**2021 - September - Sep 21 Claims**		
		004315833			
			001-000-518-10-31-00	Office/Operating Supplies	$6.72
			001-000-558-50-31-00	Office/Operating Supplies	$4.84
			101-000-543-30-31-00	Office/Operating Supplies	$1.02
			106-000-536-20-31-00	Operating Supplies	$0.15
			401-000-534-10-31-00	Office/Operating Supplies	$6.36
			401-000-535-10-31-00	Office/Operating Supplies	$6.36
		Total 004315833			**$25.45**
	Total 36461				**$25.45**
Total Mountain Mist					**$25.45**
OAPA					
	36462		**2021 - September - Sep 21 Claims**		
		170 ~ 2021 OAPA/APA WA Joint Planning Conference			
			Jean Lin		
			001-000-558-60-49-01	Training/Tuition	$205.00
		Total 170 ~ 2021 OAPA/APA WA Joint Planning Conference			**$205.00**
	Total 36462				**$205.00**
Total OAPA					**$205.00**

Vendor	Number	Reference	Account Number	Description	Amount
RODNEY BROWN					
	36463		**2021 - September - Sep 21 Claims**		
		36001.0 Refund			
			272507-9030		
			633-000-589-90-01-00	Utility Bill Refund	$277.71
		Total 36001.0 Refund			**$277.71**
	Total 36463				**$277.71**
Total RODNEY BROWN					**$277.71**
ROGERS MACHINERY COMPANY, INC					
	36464		**2021 - September - Sep 21 Claims**		
		1283717			
			408-000-594-35-60-03	Vac Pump Rebuild	$11,706.18
		Total 1283717			**$11,706.18**
	Total 36464				**$11,706.18**
Total ROGERS MACHINERY COMPANY, INC					**$11,706.18**
The Fire House					
	36465		**2021 - September - Sep 21 Claims**		
		140147			
			001-000-518-10-48-00	City Hall R&M	$54.63
			001-000-558-50-48-00	City Hall R&M	$54.63
			101-000-542-40-48-04	City Hall R&M	$54.63
			101-000-543-30-48-01	City Hall R&M	$54.63
			401-000-534-10-48-01	City Hall R&M	$54.64
			401-000-535-10-48-01	City Hall R&M	$54.64
		Total 140147			**$327.80**
	Total 36465				**$327.80**
Total The Fire House					**$327.80**
Utilities Underground					
	36466		**2021 - September - Sep 21 Claims**		
		1080136			
			101-000-542-40-41-04	Utility Locates	$18.49
			401-000-534-60-41-05	Utility Locates	$18.49
			401-000-535-60-41-05	Utility Locates	$18.49
		Total 1080136			**$55.47**
	Total 36466				**$55.47**
Total Utilities Underground					**$55.47**
Grand Total		**Vendor Count**	**28**		**$188,518.53**

Sno Valley Senior Housing
Estimated Permits/Fees (Sept. 2021)

Estimated Permit Fees per City Council Resolution 446 in City of Carnation: any fees listed reflect the 2021 rates and cannot be locked in

1.Building
Permit fee- 12,972 sf. $ 125.18 psf valuation = $1,623,834.96
$7610.92 (first million) + (623 x 5= $3115) $7610.92 + $3115 = **$10,725.92 Bldg permit fee**
(624 x 5 = $3120) $3120 $10,730.92
Plan review fee- 65% of permit = $6971.85 $6975.10
Bldg code council fee- $6.50 plus $2.00 per unit after the first = $34.50
Carnation permit issuance fee- $75 does not apply
Total estimated bldg permits = $17,779.27 $17,740.52

2.Mechanical (in addition to Building)
Residential permit- $38.77
Vent fans (ducted)17 @16.02 ea. = $272.34
Heat Pumps- 19 (16.02) = $304.38
Total Mechl = $615.49 ESTIMATED, final fee based on number of fixtures

3.Plumbing(in addition to Building)
Residential permit- $40.73
Total # of fixtures-48 ($10.37)= $497.76
Sewer- $10.37 per sewer line
Water heaters-17 ($10.37) = $176.29
Total Plumbing = $725.15 ESTIMATED, final fee based on number of fixtures

4. Fire Alarm (in addition to Building)
Fire alarm (assume 20 devices) $280
Inspection- $120
Review $510
Total Fire Alarm = $910 ESTIMATED, final fee based on number of fixtures

5. Fire Sprinklers
Assume 300 heads- $710
Inspection- $200
Review- $510
Total Sprinklers= $1420 ESTIMATED, final fee based on number of fixtures

6. Fire flow/Fire access/Underground supply
Underground supply- $90
Fire access/flow- fees- $110
Plan review- $110
Total Fire flow/access/underground= $310 ESTIMATED

7. Electrical permit- thru Wa. State L & I (not City of Carnation)
$463. 70 min for 1,000 amp service. Note- Electl. fees are incomplete Carnation does not issue electrical permits, accuracy unknown

Impact Fees:
1. School Impact Fee-

Riverview School District #407
Multifamily= $9942 per unit (15) = **$149,130** if fees are not waived by RSD, a $65/unit admin fee will be charged

2. Transportation Impact (City of Carnation)
   Multifamily = $4427 per unit (15) = **$66,405**

3. Park Impact (City of Carnation)
   $3123 per unit (15) = **$46,845**

Hookup Fees:

Water connection (1-4" domestic water line) Ordinance 743- 2011- GFC **$253,913,** plus meter cost and labor for city to install it (SVSC would provide the main tap, City would install the meter only)
ESTIMATED with 2021 rates

Fire line (6")- It is a tap for fire service only so it would be SVSC cost for labor and materials from a contractor. City would definitely need a detector check valve installed, and a way to check for usage.

Sewer- general facility charge- .6 RCES per unit, 1 RCE = $8419 .63 RCE'S for 5+ units
(Class IV multi family- fee qualify for low income residential? 50%) Ordinance 743- 2011 no discount listed for connection charges
Total for 15 units= **$76,000** ESTIMATED with 2021 rates
Note= credit for payments from house since 2008 (Sewer credit- $3909/Water $10,000) Recommend that SVSC keep paying monthly bills on that.. $3909 is the total over 20 years; only a portion has been paid since May 2008

SVSC Estimated permits and fee for Senior Housing

PERMITS	***Amount***	
Building Permit	$ 17,779.27	$17,740.52
Mechanical Permit	$ 615.49	ESTIMATED
Plumbing	$ 725.15	ESTIMATED
Fire	$ 910.00	ESTIMATED
Fire sprinklers	$ 1,420.00	ESTIMATED
Fire Flow/access underground	$ 310.00	ESTIMATED
Hook up fees water GFC	$ 162,506.00	ESTIMATED, cost varies by meter size
Sewer additional sewer GFC	$ 76,000.00	ESTIMATED
Permit TOTAL	**$260,265.91**	
Impact fees	***Amount***	
School Impact	$ 149,130.00	plus $975 admin fee if not waived by RSD
Transportation impact	$ 66,405.00	2021 RATES
Parking impact	$ 46,845.00	2021 RATES
Impact TOTAL	**$262,380.00**	
Hook up Fees (water, sewer, fire)	$ 329,913.00	ESTIMATED WITH 2021 RATES
Permits	$ 260,265.91	ESTIMATED WITH 2021 RATES
Impact	$ 262,380.00	ESTIMATED WITH 2021 RATES
Total to City of Carnation	**$852,559.00**	

NOTE: The King County Capacity Charge Program will be notified when development has been applied for, and will charge the new facility based on the increase of residential equivalents (RCE's). The property has been assessed at 1 RCE for the previous SFR on-site. Any difference will be calculated by their office, and they handle their own billing. 2021 Capacity Charge rate is $68.34 per RCE. They may offer discounts to reduce the capacity charge rate.

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: **An Ordinance** providing for the issuance and sale of a limited tax general obligation bond in the principal amount of [$2,100,000] to be used to finance the acquisition of land and other capital projects; fixing or setting parameters with respect to certain terms and covenants of the bond; and providing for other related matters.	**Agenda Bill No.:**	**AB21-48R**
	Type of Action:	**ORDINANCE**
	Origin: *(Council/Manager)*	Council of the Whole
	Agenda Bill Author:	City Clerk
EXHIBITS: • Schedule of Events • Draft ordinance	**Date Submitted:**	09/17/2021
	For Agenda of:	09/21/2021
	Expenditure Required:	
	Amount Budgeted:	
	Appropriation Required:	

SUMMARY STATEMENT AND DISCUSSION:

On August 17th the Council authorized the City's bond agent and counsel to proceed with proposals for a $2.1 million LTGO bond issuance with a term of 15-years and a rate not to exceed 3%. The issuance costs and the net proceeds do not change with the interest rate, only the debt service to be paid.

The bids are due at 2:00 PM on Monday, September 20th, and the City's bond counsel and placement agent will have more information about the bid(s) received before the meeting on Tuesday. Attached is the schedule of events and example ordinance for approval of the bond issuance. If approved, the transaction will close on approximately October 6th.

EXAMPLE ACTION: I move to approve an ordinance providing for the issuance and sale of a limited tax general obligation bond in the principal amount of [$2,100,000] to be used to finance the acquisition of land and other capital projects; fixing or setting parameters with respect to certain terms and covenants of the bond; and providing for other related matters.

LEGISLATIVE HISTORY:

08/03/2021: Council authorization to proceed with preparation for $2.1 M LTGO bond issuance.
08/17/2021: Motion by Deputy Mayor Ribail and second by Councilmember Harris to request proposals up to a 3% rate.

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

PIPER | SANDLER

1420 Fifth Avenue, Suite 1425, Seattle, Washington 98101
Tel: 206-628-2882 | **Tel: 866-382-6637** | Fax: 206-343-2103
Piper Sandler & Co. Since 1895. Member SIPC and NYSE.

City of Carnation, Washington

Limited Tax General Obligation Bond, 2021

Schedule of Events

(~~As of August 22, 2021~~Updated August 27, 2021)

August 2021						
S	M	T	W	T	F	S
1	2	3	4	5	6	7
8	9	10	11	12	13	14
15	16	17	18	19	20	21
22	23	24	25	26	27	28
29	30	31				

September 2021						
S	M	T	W	T	F	S
			1	2	3	4
5	6	7	8	9	10	11
12	13	14	15	16	17	18
19	20	21	22	23	24	25
26	27	28	29	30		

October 2021						
S	M	T	W	T	F	S
					1	2
3	4	5	6	7	8	9
10	11	12	13	14	15	16
17	18	19	20	21	22	23
24	25	26	27	28	29	30
31						

Staff: City Staff
Council: City Council *[meets first and third Tuesdays of each month at 7:00 p.m]*
PSC: Piper Sandler & Co. (Placement Agent)
BC: Foster Garvey PC (Bond Counsel)

Date	Event	Participants
Aug. 23	Term Sheet distributed to banks	PSC
Sept. ~~13~~20	**Responses from banks due**	
Sept. ~~14~~21	**Council reviews bids/approves Bond Ordinance**	**Council, Staff, BC**
Sept. ~~15~~22	**Select purchaser, negotiate final terms, lock in rates**	**Staff, PSC, BC**
Sept. ~~16~~23-~~28~~Oct. 5	Distribute legal documents for review/finalize legal documents	BC
~~Sept. 29~~Oct. 6	**Closing and delivery of proceeds**	**All Parties**

CITY OF CARNATION, WASHINGTON

ORDINANCE NO. _____

AN ORDINANCE of the City of Carnation, Washington, providing for the issuance and sale of a limited tax general obligation bond in the principal amount of [$2,100,000] to be used to finance the acquisition of land and other capital projects; fixing or setting parameters with respect to certain terms and covenants of the bond; and providing for other related matters.

THE CITY COUNCIL OF THE CITY OF CARNATION, WASHINGTON, DO ORDAIN AS FOLLOWS:

Section 1. Definitions. As used in this ordinance, the following capitalized terms shall have the following meanings:

(a) "*Bond*" means the "City of Carnation, Washington Limited Tax General Obligation Bond, 2021" authorized by this ordinance.

(b) "*Bond Fund*" means the debt service fund of the City created for the payment of the principal of and interest on the Bond.

(c) "*Bond Register*" means the registration records for the Bond maintained by the Bond Registrar.

(d) "*Bond Registrar*" means the City Treasurer, whose duties include registering and authenticating the Bond, maintaining the Bond Register, transferring ownership of the Bond, and paying the principal of and interest on the Bond.

(e) "*City*" means the City of Carnation, Washington, a municipal corporation duly organized and existing under the laws of the State of Washington.

(f) "*City Council*" means the legislative authority of the City, as duly and regularly constituted from time to time.

(g) "*Code*" means the United States Internal Revenue Code of 1986, as amended, and applicable rules and regulations promulgated thereunder.

(h) "*Issue Date*" means the date of the delivery of the Bond to the Purchaser.

(i) "*Projects*" means the financing of land acquisition and other capital improvements approved by the Council.

(j) "*Project Fund*" means the fund or account designated or created by the City for the purposes of carrying out the Projects.

(k) "*Purchaser*" means _____.

Section 2. Findings and Determinations. The City takes note of the following facts and makes the following findings and determinations:

(a) *Authority and Description of the Projects*. The City is in need of financing the Projects and other project-related costs. The City Council therefore finds that it is in the best interests of the City to carry out the Projects.

(b) *Plan of Financing*. Pursuant to applicable law, including without limitation chapters 35.37, 39.36, 39.44, 39.46 and 39.52 RCW, the City is authorized to issue general obligation bonds for the purpose of financing the Project. The total expected cost of the Projects is approximately $14,000,000, which is expected to be made up of proceeds of the Bond, grants and other available money of the City.

(c) *Debt Capacity*. The maximum amount of indebtedness authorized by this ordinance is $2,100,000. Based on the following facts, this amount is to be issued within the amount permitted to be issued by the City for general municipal purposes without a vote:

(1) The assessed valuation of the taxable property within the City as ascertained by the last preceding assessment for City purposes for collection in the calendar year 2021 is $407,950,576.

(2) As of August 1, 2021, the City had limited tax general obligation indebtedness, consisting of bonds and leases outstanding in the principal amount of $2,121,752, which is incurred within the limit of up to 1½% of the value of the taxable property within the City permitted for general municipal purposes without a vote.

(3) As of August 1, 2021, the City had no unlimited tax general obligation indebtedness outstanding.

(d) *The Bond*. For the purpose of providing the funds necessary to carry out the Projects and to pay the costs of issuance and sale of the Bond, the City Council finds that it is in the best interests of the City and its taxpayers to issue the Bond consistent with this ordinance.

Section 3. Authorization of the Bond. The City is authorized to borrow money on the credit of the City and issue a limited tax general obligation bond evidencing indebtedness in the aggregate principal amount of [$2,100,000] to provide funds necessary to finance the Projects and to pay the costs of issuance and sale of the Bond.

Section 4. Description of the Bond. The Bond shall be issued as a single bond designated as the City of Carnation, Washington, Limited Tax General Obligation Bond, 2021; shall be in the principal amount of [$2,100,000]; shall be dated the Issue Date; shall be numbered R-1; shall be issued only in fully registered form; and shall mature on December 1, 2036 (the "Maturity Date"); and shall bear interest at the rates per annum set forth in Exhibit A (computed on the basis of a 360 day year of 12 30 day months), payable semiannually on each June 1 and December 1, commencing June 1, 2022. Principal on the Bond shall be payable annually on

each December 1, commencing December 1, 2024, as set forth in Exhibit A, which is attached to this ordinance and incorporated by this reference. [Add draw down provisions.]

Section 5. Bond Registrar; Registration and Transfer of the Bond. Pursuant to RCW 39.46.030(4) the City's Treasurer shall serve as initial fiscal agent for the City (the "Bond Registrar") with respect to the Bond and is authorized, on behalf of the City, to authenticate and deliver the Bond in accordance with the provisions of the Bond and this ordinance. The Bond shall be issued only in registered form as to both principal and interest and shall be recorded on books or records maintained by the Bond Registrar (the "Bond Register"). The Bond Register shall contain the name and mailing address of the owner of the Bond.

Upon a determination by the City Treasurer that maintenance of the duties of the Bond Registrar is no longer convenient, the fiscal agent of the State of Washington shall act as Bond Registrar.

The Bond Registrar shall keep, or cause to be kept, at its office, sufficient books for the registration, assignment or transfer of the Bond, which books shall be open to inspection by the City at all times. The Bond Registrar is authorized, on behalf of the City, to authenticate and deliver the Bond transferred or exchanged in accordance with the provisions of the Bond and this ordinance, to serve as the City's paying agent for the Bond and to carry out all of the Bond Registrar's powers and duties under this ordinance.

The Bond Registrar shall be responsible for its representations contained in the Bond Registrar's Certificate of Authentication on the Bond.

The Bond may be assigned or transferred only in whole by the Purchaser to a single investor that is a financial institution or an entity reasonably believed to be a qualified institutional buyer within the meaning of the applicable federal securities laws. Any transfer shall be without cost to the owner or transferee, except for governmental charges imposed on any such transfer or exchange. The Bond Registrar shall not be obligated to exchange or transfer the Bond during the 15 days preceding any payment or prepayment date. When the Bond has been paid in full, both principal and interest, the Bond shall be surrendered to the Bond Registrar, who shall cancel the Bond.

Section 6. Form and Execution of the Bond.

(a) *Form of the Bond; Signatures and Seal*. The Bond shall be prepared in a form consistent with the provisions of this ordinance and Washington law. The Bond shall be signed by the Mayor and the City Clerk, either or both of whose signatures may be manual or in facsimile, and the seal of the City or a facsimile reproduction thereof shall be impressed or printed thereon. If any officer whose manual or facsimile signature appears on the Bond ceases to be an officer of the City authorized to sign bonds before the Bond bearing his or her manual or facsimile signature is authenticated by the Bond Registrar, or issued or delivered by the City, the Bond nevertheless may be authenticated, issued and delivered and, when authenticated, issued and delivered, shall be as binding on the City as though that person had continued to be an officer of the City authorized to sign bonds. The Bond also may be signed on behalf of the City

by any person who, on the actual date of signing of the Bond, is an officer of the City authorized to sign bonds, although he or she did not hold the required office on its Issue Date.

(b) *Authentication*. Only the Bond bearing a Certificate of Authentication in substantially the following form, manually signed by the Bond Registrar, shall be valid or obligatory for any purpose or entitled to the benefits of this ordinance: "Certificate of Authentication. This Bond is the fully registered City of Carnation, Washington, Limited Tax General Obligation Bond, 2021, described in the Bond Ordinance." The authorized signing of a Certificate of Authentication shall be conclusive evidence that the Bond so authenticated has been duly executed, authenticated and delivered and is entitled to the benefits of this ordinance.

Section 7. Payment of the Bond. Both principal of and interest on the Bond shall be payable in lawful money of the United States of America and shall be paid by electronic transfer, unless payment by check or draft of the Bond Registrar is permitted by the Purchaser, and sent to the Purchaser so that the Purchaser receives the payments when due at the address appearing on the Bond Register. The Bond is not subject to acceleration under any circumstances.

Upon receipt of the final payment of principal of and interest on the Bond, whether at maturity or upon prepayment, the Purchaser shall present and surrender the Bond to the Bond Registrar to be destroyed or cancelled in accordance with law. The City and the Bond Registrar may deem and treat the Purchaser as the absolute owner of the Bond for the purpose of receiving payment of principal and interest and for all other purposes, and neither the City nor the Bond Registrar shall be affected by any notice to the contrary other than proper notice of assignment or transfer.

Section 8. Funds and Accounts; Deposit of Bond Proceeds.

(a) *Bond Fund*. The Bond Fund of the City is created for the sole purpose of paying principal of and interest on the Bond. All amounts allocated to the payment of the principal of and interest on the Bond shall be accounted for separately and shall be deposited in the Bond Fund as necessary for the timely payment of amounts due with respect to the Bond. The principal of and interest on the Bond shall be paid out of the Bond Fund. Until needed for that purpose, the City may invest money in the Bond Fund temporarily in any legal investment, and the investment earnings shall be retained in the Bond Fund and used for the purposes of that fund.

(b) *Project Fund*. The Project Fund is a fund of the City to be used to pay the costs of the Project. Proceeds received from the sale and delivery of the Bond shall be deposited into the Project Fund and used to pay the costs of the Project and costs of issuance of the Bond. Until needed to pay such costs, the City may invest those proceeds temporarily in any legal investment, and the investment earnings shall be retained in the Project Fund and used for the purposes of that fund, except that earnings subject to a federal tax or rebate requirement (if applicable) may be withdrawn from the Project Fund and used for those tax or rebate purposes.

Section 9. Prepayment. The City may prepay the Bond, in whole or in part, at any time, with at least 10 days' notice to the Purchaser. Any such prepayment will be applied to the earliest payments of principal due under the Bond. Partial prepayment would be first applied to outstanding accrued interest with the balance applied to reduce principal. After a partial prepayment, the debt service schedule will be recalculated as mutually agreed upon, in writing, by the City and the Purchaser to reflect either a reduction in the semiannual payment amount, or the earlier maturity date of the Bond. Within seven business days of prepayment, the Purchaser shall provide to the City and the Bond Registrar a recalculated payment schedule.

Section 10. Failure to Pay the Bond. If any payment of the Bond is not paid when due, the City shall be obligated to pay interest on the Bond at the same rate provided in the Bond from and after its maturity or date fixed for prepayment until the Bond, both principal and interest, is paid in full or until sufficient money for its payment in full is on deposit in the Bond Fund, or in a trust account established to refund or defease the Bond, and the Bond has been called for payment by giving notice of that call to the Purchaser.

Section 11. Pledge of Taxes. The Bond constitutes a general indebtedness of the City and is payable from tax revenues of the City and such other money as is lawfully available and pledged by the City for the payment of principal of and interest on the Bond. For as long as the Bond is outstanding, the City irrevocably pledges that it shall, in the manner provided by law within the constitutional and statutory limitations provided by law without the assent of the voters, include in its annual property tax levy amounts sufficient, together with other money that is lawfully available, to pay principal of and interest on the Bond as the same become due. The full faith, credit and resources of the City are pledged irrevocably for the prompt payment of the principal of and interest on the Bond and such pledge shall be enforceable in mandamus against the City.

Section 12. Tax Covenants.

(a) *Preservation of Tax Exemption for Interest on the Bond*. The City covenants that it will take all actions necessary to prevent interest on the Bond from being included in gross income for federal income tax purposes, and it will neither take any action nor make or permit any use of proceeds of the Bond or other funds of the City treated as proceeds of the Bond that will cause interest on the Bond to be included in gross income for federal income tax purposes. The City also covenants that it will, to the extent the arbitrage rebate requirements of Section 148 of the Code are applicable to the Bond, take all actions necessary to comply (or to be treated as having complied) with those requirements in connection with the Bond.

(b) *Post-Issuance Compliance*. The City Treasurer is authorized and directed to review and update, if necessary, the City's written procedures to facilitate compliance by the City with the covenants in this ordinance and the applicable requirements of the Code that must be satisfied after the Issue Date to prevent interest on the Bond from being included in gross income for federal tax purposes.

(c) *Designation of the Bond as a "Qualified Tax-Exempt Obligation.*" The City may designate the Bond as a "qualified tax-exempt obligation" for the purposes of Section 265(b)(3) of the Code, if the following conditions are met:

(1) the Bond does not constitute a "private activity bond" within the meaning of Section 141 of the Code;

(2) the reasonably anticipated amount of tax-exempt obligations (other than private activity bonds and other obligations not required to be included in such calculation) that the City and any entity subordinate to the City (including any entity that the City controls, that derives its authority to issue tax-exempt obligations from the City, or that issues tax-exempt obligations on behalf of the City) will issue during the calendar year in which the Bond is issued will not exceed $10,000,000; and

(3) the amount of tax-exempt obligations, including the Bond, designated by the City as "qualified tax-exempt obligations" for the purposes of Section 265(b)(3) of the Code during the calendar year in which the Bond is issued does not exceed $10,000,000.

Section 13. Sale of the Bond. The Bond shall be sold to the Purchaser at a price of par on the terms and conditions set forth herein; the City will furnish the Bond and the approving legal opinion of Foster Garvey P.C., municipal bond counsel, relative to the issuance of the Bond, at the City's expense.

Section 14. Reporting Requirements. While the Bond is outstanding, the City shall submit to the Purchaser its annual financial reports within 30 days after receipt of such annual financial report from the Washington State Auditor and such additional information as the Purchaser may reasonably request.

Section 15. Default. The following events shall constitute a default under the Bond:

(a) a failure to pay principal or interest on the Bond when due,

(b) a failure by the City to comply with any of its obligations, or to perform any of its duties, under this ordinance, which failure continues and is not cured for a period of more than 60 days after the Purchaser has made written demand on the City to cure such failure, or

(c) a material misrepresentation to the Purchaser by the City in the purchase of the Bond, as reasonably concluded by the Purchaser after investigation and discussion with the City.

If any default occurs as delineated in this section, the interest rate may be increased to a default interest rate of _____, and the Purchaser may pursue any other remedies to which it is entitled under the Bond and this ordinance, at law or in equity.

Section 16. Governing Law. The Bond shall be governed and interpreted according to the laws of Washington.

Section 17. General Authorization and Ratification. The Mayor, Interim City Manager, City Treasurer, City Clerk and other appropriate officers of the City are severally authorized to take such actions and to execute such documents as in their judgment may be necessary or desirable to carry out the transactions contemplated in connection with this ordinance, and to do everything necessary for the prompt delivery of the Bond to the Purchaser thereof and for the proper application, use and investment of the proceeds of the Bond. All

actions taken prior to the effective date of this ordinance in furtherance of the purposes described in this ordinance and not inconsistent with the terms of this ordinance are ratified and confirmed in all respects.

Section 18. Severability. The provisions of this ordinance are declared to be separate and severable. If a court of competent jurisdiction, all appeals having been exhausted or all appeal periods having run, finds any provision of this ordinance to be invalid or unenforceable as to any person or circumstance, such offending provision shall, if feasible, be deemed to be modified to be within the limits of enforceability or validity. However, if the offending provision cannot be so modified, it shall be null and void with respect to the particular person or circumstance, and all other provisions of this ordinance in all other respects, and the offending provision with respect to all other persons and all other circumstances, shall remain valid and enforceable.

Section 19. Effective Date of Ordinance. This ordinance shall take effect and be in force from and after its passage and five days following its publication as required by law.

PASSED by the City Council of the City of Carnation, Washington, and **APPROVED** by its Mayor, at a regularly scheduled open public meeting thereof this ___ day of September, 2021.

_____
Mayor

ATTEST:

_____
City Clerk

CERTIFICATION

I, the undersigned, City Clerk of the City of Carnation, Washington (the "City"), hereby certify as follows:

1. The attached copy of Ordinance No. _____ (the "Ordinance") is a full, true and correct copy of an ordinance duly passed at a regular meeting of the City Council of the City held at the regular meeting place thereof on September ___, 2021, as that ordinance appears on the minute book of the City.

2. That said meeting was duly convened and held in all respects in accordance with law (including Proclamation 20-28 made by the Governor of the State of Washington on March 24, 2020, as extended, and acts of the legislative leadership of the State of Washington) and to the extent required by law, due and proper notice of such meeting was given.

3. A quorum of the members of the City Council was present throughout the meeting and a majority of the members voted in the proper manner for the passage of the Ordinance.

4. That all other requirements and proceedings incident to the proper passage of the Ordinance have been duly fulfilled, carried out and otherwise observed, and that I am authorized to execute this Certificate.

5. The Ordinance will be in full force and effect five days after publication in the City's official newspaper, which publication date is expected to be _____, 2021.

Dated: September ___, 2021.

CITY OF CARNATION, WASHINGTON

_____

City Clerk

CARNATION CITY COUNCIL
AGENDA BILL

TITLE: A Motion approving Task Order 8 with HNTB Corporation for engineering and construction management services for the Brumbaugh Water Main Replacement Project in an amount not to exceed $125,807.	**Agenda Bill No.:** **AB21-49** **Type of Action:** **MOTION** **Origin:** *(Council/Manager)* City Manager **Agenda Bill Author:** City Clerk **Date Submitted:** 09/16/2021 **For Agenda of:** 09/21/2021 **Expenditure Required:** $125,807 **Amount Budgeted:** $117,750 **Appropriation Required:** $8,057
EXHIBITS: • Project Map (on reverse) • Proposed TO 8 to the Consultant Agreement with HNTB for City Engineer Services.	

SUMMARY STATEMENT AND DISCUSSION:

This project will replace 6" water main with 8" main in Brumbaugh's Division on the following segments:

- NE 47th St from Milwaukee Ave to 328th Ave NE
- 326th Ave NE from NE 47th to NE 50th St
- 327th Ave NE from NE 47th to NE 50th St
- 328th Ave NE from NE 47th to NE 50th St

This agreement will provide survey and base drawings; engineering design drawings, specifications, bid/contract documents, opinion of probable construction costs and support for bid collection, and construction management services.

RECOMMENDED ACTION: I move to authorize the Acting City Manager to execute Task Order 8 with HNTB Corporation for engineering and construction management services for the Brumbaugh Water Main Replacement Project in an amount not to exceed $125,807.

LEGISLATIVE HISTORY:

ACTION TAKEN

MOTION AS PROPOSED			MOTION AS AMENDED		
Motion made by:			Motion made by:		
Second by:			Second by:		
	YES Vote	NO Vote		YES Vote	NO Vote
Hawkins			Hawkins		
Ribail			Ribail		
Harris			Harris		
Lisk			Lisk		
Green			Green		
Passed/Failed			Passed/Failed		
Ordinance/Resolution No.:			Ordinance/Resolution No.:		

BRUMBAUGH WATER MAIN REPLACEMENT
(Project R-6)

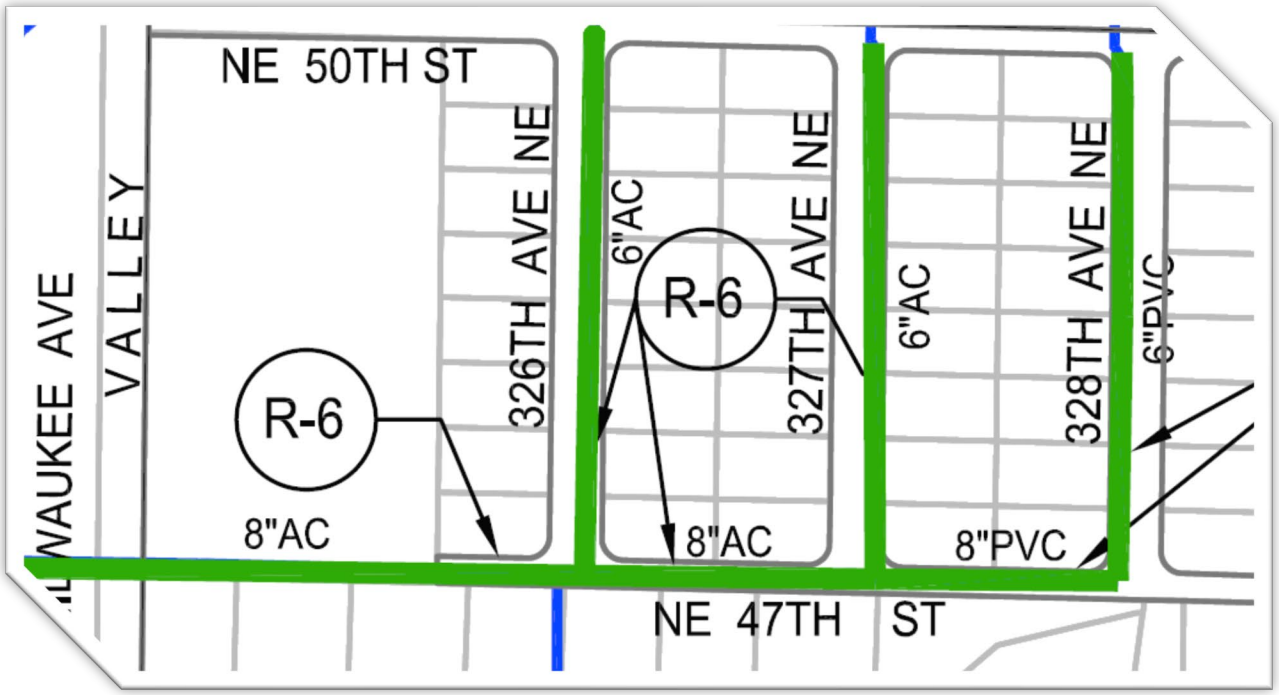


EXHIBIT D

BRUMBAUGH WATER MAIN REPLACEMENT TASK ORDER

TASK ORDER NUMBER 8

This Task Order No.8 ("Task Order") is entered into between the City of Carnation, Washington ("CITY") and HNTB CORPORATION ("CONSULTANT") on March 25, 2021, under the terms and conditions established in the CONSULTANT AGREEMENT between CITY and CONSULTANT dated July 1, 2019, (the "Agreement").

SECTION A – SCOPE OF SERVICES

A.1. The CONSULTANT shall provide the following Services:

Per Attachment A, Scope of Services

A.2. CONSULTANT shall provide the following deliverables to CITY:

Per Attachment A, Scope of Services

SECTION B – SCHEDULE

CONSULTANT shall perform the Services according to the following schedule.

Per Attachment A, Scope of Services

SECTION C - COMPENSATION

The total amount payable by CITY under this Task Order resulting from the Services is **$125,807.00** and shall be paid according to the terms of the Agreement.

Per Attachment B, Level of Effort

SECTION D – OTHER PROVISIONS

The parties agree to the following provisions with respect to this specific Task Order:

N/A

All terms and conditions of the Agreement are incorporated herein and shall control in the event of a conflict with this Task Order. CITY and CONSULTANT hereby agree to the terms and conditions of this Task Order as of the date set forth above. The individuals signing this Task Order represent and warrant that they have the power and authority to enter into this Task Order and bind the parties for whom they sign.

CITY:	CONSULTANT
By: _____	By: _____
Name: _____	Name: _____
Title: _____	Title: _____

ATTACHMENT A
SCOPE OF SERVICES

City of Carnation
Brumbaugh Water Main Replacement

SCOPE OF SERVICES

The following scope outlines the engineering services for design of approximately 3,100 LF of water main replacements. The Scope of Services will consist of providing topographic surveying and preparing base drawings; preparing preliminary and final engineering design drawings, specifications, bid/contract documents, and opinion of probable construction costs and support for bid collection, and construction management services. CITY staff to provide construction observation for the project.

The project includes installation of new eight-inch water mains consistent with project number R-6 of Carnation's Water System Plan 2016 Capital Improvement Project list. Project R-6 includes the following segments:

- NE 47th St from Milwaukee Ave to 328th Ave NE
- 326th Ave NE from NE 47th to NE 50th St
- 327th Ave NE from NE 47th to NE 50th St
- 328th Ave NE from NE 47th to NE 50th St

General Project Assumptions

- Topographic survey will be required through the project limits.
- Neither traffic analysis nor safety analysis will be conducted as part of the work scope.
- Right-of-way or Easement acquisition is not anticipated for this project.
- Soil information will be provided through United States Department of Agriculture (USDA) soil mapping and existing boring data from adjacent project(s).
- The CITY shall provide all City permits needed for the project.

Task No. 1 - Project Management:

1.1 Supervision of CONSULTANT staff in the performance of services and production of documents.
1.2 Monitor and manage CONSULTANT's project schedule and budget.
1.3 Correspondence with CITY on progress of work and design issues.
1.4 Provide in-house QA/QC reviews.

Task No. 2 – Survey and Base Map Preparation:

For the purpose of providing a Topographic Map and Right-of-Way Survey for new water main design.

2.1 The project limit is the Right-of-Way plus five-feet outside the Right-of-Way.

2.2 Survey will tie Right-of-Way controlling monuments to establish the Right-of-Way boundaries within the project limits.

2.3 Survey will create a 2'-contour topographic map of the area within the project limits. The topography will include hard surfaces, trees (2-in or greater diameter of trunk measured at 4-ft above grade) , driveways, mailboxes, shrubs, ditches and utilities.

2.4 Utilities will be shown per above ground evidence, measure downs in storm structures as well as paint marks. Survey to arrange for utility locates.

2.5 Survey will provide a signed PDF copy of the base drawings as well as an AutoCad Civil3D drawing. The base drawings for design will be on 22"x34" Sheets at 1"=20' scale.

2.6 Survey will also deliver the existing surface model within the drawing or through a LandXML file or DTM file.

2.7 Survey control will also be included on the face of the base drawings for inclusion in the final design drawings.

2.8 Survey will perform a site visit to perform a QA/QC walkthrough of the final base drawings.

2.9 Survey to arrange for underground utilities locates.

Task No. 3 – Water Main Design

3.1 Prepare preliminary construction plans, project specifications and estimate of probable construction cost. The preliminary plans will include water main alignment, valves, fire hydrants, service connections and topographic features. Provide horizontal and vertical design alignment of water mains.

3.2 Meet with CITY to review preliminary construction plans, specifications and engineer's estimate (PS&E). Incorporate applicable CITY's comments with the development of the final PS&E package.

3.3 Prepare King County Parks Right-of-Way Construction permit application.

3.4 Prepare a State Environmental Policy Act (SEPA) checklist.

3.5 Prepare bid ready PS&E construction plans, specifications and opinion of probable construction cost.

Assumptions:

- Geotechnical evaluation is not included
- CITY personnel will be available to verify system pressures and to confirm locations of valves and piping.
- Trench dewatering plans or overexcavation to replace unsutiable pipe foundation soils are not included.
- The project specifications will be in American Public Works Association (APWA)/Washington State Department of Transportation (WSDOT) format.

- The existing asbestos water system piping will be abandoned in plac.
- Support for public open houses/workshops is not included.
- Department of Health review or approval will not be conducted.
- A Cultural Resources Survey will not be performed.

CITY Responsibilities:

- CITY personnel will assess the constructability of switching from the old to the new system.
- CITY to review the preliminary and final bid documents and provide written review comments or discuss review comments during a review meeting within two weeks of receiving the docuements.
- Locate CITY's stormwater, water and sewer lines before field survey.
- Process a SEPA checklist for the project.
- Submit and pay all applicable King County permit fees and bid advertisement costs.

Task No. 4 – Contract Bid and Award Administration:

4.1 Provide clarifications and interpretations during bidding period and issue up to two (2) addenda as required.

4.2 Review submitted bids, apparent low bidder qualification, prepare one (1) bid tabulation, and provide recommendation for contract award.

4.3 Schedule and attend one (1) pre-construction meeting.

CITY Responsibilities:

- Advertise the project for public bids.
- CITY will conduct bid opening.
- Advertise the project for public bids.
- Pay fees associated with online plan center distribution of bid documents.

Task No. 5 – Construction Observation and Administration:

The CITY shall provide on-site construction observation during the anticipated construction period and project construction documentation. Visits to the Project site and observations made by the CONSULTANT as part of services during construction under this Task Order and AGREEMENT in general, is to determine if the work is being performed in conformance with the Contract Documents; and notifying the CITY if work does not conform to the Contract Documents.

5.1 The CONSULTANT shall provide Construction Administration services to include the following, up to the level of efforts assumed for this task under this Task Order:

a. Evaluate any proposed changes requested by the contractor, whether or not they may affect the contract price, and present to CITY Project Manager/Engineer for authorization.
b. Review materials submittals and check for compliance with contract requirements.
c. Coordinate, review, and process Requests for Information (RFIs) for interpretation and clarification of the construction documents.
d. Coordinate and process Change Order Proposals and provide recommendations to the CITY as it relates to the plans, specifications, and site conditions.
e. Prepare monthly pay estimates based on material quantities installed.

Assumptions:

CONSULTANT assumes the following will be performed by the CITY:

CITY Responsibilities:

a. Monitor construction work, troubleshoot problems on site as they develop.
b. Prepare construction observation reports, document methods, construction materials and track bid item quantities installed.
c. Coordination of and attendance at facility start-ups.
d. Take pre-construction photographs along the length of the project.
a. Attend weekly project site meetings with the contractor, County staff, Utilities, and others associated with the project.
b. Material testing of trench backfill and pavement compaction will be completed as required by King County right-of-way permit.
c. Monitor the contractor's traffic control procedures for conformance to approved plans and provide recommendations to the CITY and the contractor.
d. Coordinate with the CONSULTANT to prepare punch list items.
e. Take digital photos of the construction as the project progresses and maintain in project file.
f. Maintain a monthly tracking of contractor's installed pay quantities for inclusion in a monthly pay ledger by CONSULTANT.

Task No. 6 - Project Completion and Closeout

6.1 The CONSULTANT shall coordinate with the CITY Project Manager/Engineer and contractor to complete documentation required by the contract including the following, up to the level of efforts assumed under this task in this Task Order:
a. Prepare the final punch list and complete a walk through with the CITY's Project Manager.
b. Follow up with contractor to address any unresolved punch list items.

c. Transmit Project closeout to the CITY once all change orders have been finalized and there are no outstanding issues with the contractor.
d. Obtain and verify record drawing information from contractor.
e. Prepare final contractor pay estimate and voucher.
f. Prepare Physical Completion letter.
g. Prepare final missing documentation letter to the contractor (if required).

6.2 Perform as-built revisions and provide an electronic copy of the Project files to CITY at Project close out.

SCHEDULE

Schedule

Assumes Notice to Proceed issued on or before April 30th, 2021

- Preliminary Plans, Special Provisions and opinion of probable construction estimate by November 15, 2021
- Provide Final Plans, Special Provisions opinion of probable construction estimate and water main bid schedule by February 1, 2022.

City of Carnation **Attachment B - Level of Effort**

Brumbaugh Water Main Replacement 3/5/2021

	Jorge	Minsoo Doo	Sean McCrohan	Naseef Chowdhury	TBD	Maria Yepes	
TASKS/STAFF	**Project Manager**	**QA/QC**	**Utility Engineer**	**CADD**	**Resident Engineer**	**Project Analyst**	**Total**
Project Management							
Team Management	24					16	
Monitor schedule, budget, invoicing	2					24	
City Coordination	6						
QA reviews of PS&E documents		24					
Survey and Base Map Preparation							
Base Map Preparation			8	16			
Water Main Design							
Preliminary Design							
Water Main	10	4	56	32			
TESC and Asphalt Patching		1	8	2			
Traffic Control Plans		1	8	2			
Opinion of Probable Construction Cost	2	4	24				
Final Design							
Water Main	8	4	40	10			
TESC and Asphalt Patching		1	12	3			
Traffic Control Plans		1	6	3			
Opinion of Probable Construction Cost	2	2	16				
Specifications	8	2	24				
King County Right-of-Way Permit	4		32	16			
SEPA Checklist	4		20	6			
Bid Ready PS&E Documents	16	4	70	24			
Contract Bid and Award Administration							
Respond to Bidders Questions and Addenda	6		10	4			
Award Administration	2				2		
Pre-Construction Meeting	4		4		2		
Construction Observation and Management							
Construction Observation and Management	24						
Construction Administration					64	16	
Project Completion and Closeout							
Project Closeout	2	2	12	10	16	6	
Total Hours	124.0	50.0	350.0	128.0	84.0	62.0	798.0
Direct Labor	$11,689.48	$2,175.50	$14,154.00	$5,367.04	$5,100.48	$2,285.32	
Overhead = 138.34	$16,171.23	$3,009.59	$19,580.64	$7,424.76	$7,056.00	$3,161.51	
Profit = 30.0	$3,506.84	$652.65	$4,246.20	$1,610.11	$1,530.14	$685.60	
Labor Cost	**$31,367.55**	**$5,837.74**	**$37,980.84**	**$14,401.92**	**$13,686.63**	**$6,132.43**	**$109,407**
Subconsultant - O'Bunco (survey)							$16,000
Miscellaneous Expenses (printing, mileage)							$400
Total							**$125,807**

CARNATION CITY COUNCIL DISCUSSION ITEM

Subject: Tolt Commons Plaza and Downtown Public Parking Plan Advisory Committee

Origin: Mary Madole, Acting City Manager

Date Submitted: 9/17/2021

Agenda Date: 09/21/2021

The Council has been discussing the need to form an advisory group to study and make recommendations about current and future parking needs in the downtown area and establish a sub-area work plan for the Tolt Commons plaza in correlation with the new Community Center/City Hall/EOC. The first step is creating the committee with a scope of work and due date.

The committee is proposed to study the availability of public and private parking spaces in the CBD and surrounding two block area, evaluate whether there will be sufficient parking to serve this area in the long term, and provide recommendations to address any deficiencies. The city engineer's office will conduct a baseline analysis of available parking before and after the Tolt Ave CBD Improvements Project is complete. To fit with the New CCH timeline, the committee will need to have a preliminary recommendation for the Tolt Commons area in Q1 2022.

Committee membership is proposed to be comprised of business owners, residents, event coordinators, representatives from the Planning and Parks Advisory Boards, and a liaison from the Council. Names suggested so far include:

Business:

1. Sandy Griffin
2. Bill Pritchard
3. Bill Fratzke
4. Becky Nixon

Residents:

5. Salwa Raphael (PB)
6. Brian Bodenbach
7. Parks Board
8. Planning Board

Events:

9. Denise Crutchfield
10. Morgan Henley
11. Lindsay Gilliam

Council Liaison

CARNATION CITY COUNCIL DISCUSSION ITEM

Subject: Salary Commission next steps

Origin: Mary Madole, Acting City Manager

Date Submitted: 09/16/2021

Agenda Date: 09/21/2021

Ordinance 944 establishing a Salary Commission becomes effective on September 22nd. The next step is to appoint five members to the Commission. Members must reside inside city limits and cannot be City employees or officials, or family of employees or officials. Terms are typically for two years, though with the initial appointments some members will have one-year terms to achieve term staggering. Within 90 days of appointment, the Commission must convene and complete their review of salaries.

Attachments:
Chapter 2.20 CMC Compensation of Mayor and Councilmembers

Chapter 2.20

COMPENSATION OF MAYOR AND COUNCILMEMBERS

2.20.010 Amount of compensation for mayor and mayor pro tempore.

A. The mayor shall be compensated for services in the sum of four hundred dollars per month.

B. The mayor pro tempore shall be compensated for services in the sum of two hundred fifty dollars per month.

C. The amounts of compensation for the mayor and mayor pro tempore set forth in subsections A and B of this section may be reviewed and increased or decreased by action of the salary commission pursuant to this chapter. The provisions of subsections A and B of this section shall be deemed to be superseded by any action fixing the amount of compensation for the mayor the mayor pro tempore taken by the salary commission established by this chapter.

2.20.020 Amount of compensation for councilmembers.

A. Each councilmember of the city shall be compensated for services in the sum of two hundred dollars.

B. The amount of compensation for councilmembers set forth in subsection A of this section may be reviewed and increased or decreased by action of the salary commission pursuant to this chapter. The provisions of subsection A of this section shall be deemed to be superseded by any action fixing the amount of compensation for councilmembers taken by the salary commission established by this chapter.

2.20.030 Salary commission – Creation.

There is created a salary commission for the City of Carnation to review and establish salaries for elected officials. The commission shall consist of five members who shall be appointed by the mayor with the approval of the city council. The city manager or designee shall serve as staff to the commission.

2.20.040 Salary commission – Composition and terms.

A. Members of the commission shall be residents of the city.

B. A member of the commission shall not be an officer, official, or employee of the city or an immediate family member of an officer, official, or employee of the city. For purposes of this section, "immediate family member" means the parents, spouse, siblings, children, or dependent relatives of an officer, official, or employee

of the city, whether or not living in the household of the officer, official, or employee.

C. The initial members of the commission shall be appointed for staggered terms, with two of the members appointed for a one-year term and three of the members appointed for a two-year term. Thereafter all appointments shall be for a two-year term. No commissioner shall be appointed to more than two terms, whether consecutive or otherwise.

D. In the event of a vacancy in the office of a commissioner, an eligible person shall be appointed by the mayor with the approval of the city council to serve the unexpired portion of the term.

E. A member of the commission shall only be removed from office for cause of incapacity, incompetence, neglect of duty, or malfeasance in office, or for a disqualifying change of residence.

2.20.050 Salary commission – Powers and duties.

A. The commission shall have the duty to review the salaries paid by the city to members of the city council, including the mayor and mayor pro tempore. If after such review the commission determines that the salary paid to the mayor, mayor pro tempore, or other city councilmembers should be increased or decreased, the commission shall file a written salary schedule with the city clerk indicating the increase or decrease in salary.

B. The commission shall convene and complete its initial review of the salaries paid to members of the city council, including the mayor and the mayor pro tempore, within 90 days of the appointment of the commission. Should the commission determine that the salary paid to members of the city council, including the mayor and the mayor pro tempore, should be increased or decreased, the commission shall file its initial schedule of salaries for the mayor, mayor pro tempore and city councilmembers, as applicable, with the city clerk no later than the 91st day following the appointment of the commission. Provided, that failure to meet such deadline shall not in any manner affect the validity of the commission's action. Thereafter, the commission shall meet at least once annually during the month of July or more frequently as may be directed by the city council.

C. All meetings of the commission shall be open to the public in accordance with Chapter 42.30 RCW, the Open Public Meetings Act. Members of the public shall have an opportunity to comment and/or submit comments in writing prior to a commission vote to increase or decrease salaries.

D. Any change in salary that is filed by the commission with the city clerk shall become effective and incorporated into the city budget without further action of the city council or salary commission.

E. Salary increases established by the commission shall be effective for all members of the city council, including the mayor and the mayor pro tempore, as applicable, regardless of their terms of office.

F. Salary decreases established by the commission shall become effective as to incumbent city councilmembers, including the mayor and the mayor pro tempore, as applicable, upon the commencement of their next subsequent terms of office.

G. Any adjustment of salary by the Commission shall supersede any City ordinance related to the budget or fixing of salaries, to the extent there is a conflict.

H. Salary increases and decreases shall be subject to referendum petition by the people of the city in the same manner as a city ordinance upon filing of such petition with the city clerk within thirty days after filing of the salary schedule. In the event of the filing of a valid referendum petition, the salary increase or decrease shall not go into effect until approved by vote of the people.

I. Referendum measures under this section shall be submitted to the voters of the city at the next following general or municipal election occurring thirty days or more after the petition is filed, and shall be otherwise governed by the provisions of the state Constitution, or laws generally applicable to referendum measures.

J. The commission may adopt rules to govern its meetings.

2.20.060 Construction.

The provisions of this chapter shall be construed and applied in a manner consistent with applicable state law, specifically including without limitation RCW 35.21.015.

CARNATION CITY COUNCIL DISCUSSION ITEM

Subject: Draft Employee Vaccination Policy

Origin: Mary Madole, Acting City Manager

Date Submitted: 09/16/2021

Agenda Date: 09/21/2021

At the meeting on September 7th, a majority of Councilmembers expressed an interest in considering an employee vaccination policy. At that meeting there was also discussion about whether the City is required to adopt a policy by a particular deadline, but as of yet the City is too small and does not have the types of employees and programs that are subject to employer mandates. If the Council wishes to pursue a policy, options include:

- *Mandatory with exemptions.* All employees and new hires must be vaccinated as a condition of hire or continued employment. For collective bargaining employees this is negotiated with the union.

- *Hybrid.* Either vaccination or testing plus masks to be at work.

Attached is a draft mandatory vaccination policy with exemption forms. The dates can be inserted depending on when it goes into effect, and the policy would need to be bargained with the union before it can be applied to union members. People aren't considered fully vaccinated until two weeks after their final dose, so the process can take up to 6 weeks from first dose to full vaccination. Also, if someone qualifies for a religious or medical exemption, that is just the first step in determining what happens next and what can be reasonably accommodated by the City without creating an undue burden. The Department of Health, Equal Employment Opportunity Commission, Human Rights Commission and Governor's Office provide guidance for employers on conducting this assessment that takes into account an employee's job duties, how close of contact they need to have with others, etc.

Attachments:
Draft vaccination policy
Vaccination disability reasonable accommodation request form
Vaccination religious reasonable accommodation request form

City of Carnation
Mandatory COVID-19 Vaccination Policy

Effective Date: _____

PURPOSE

The purpose of this Mandatory COVID-19 Vaccination Policy is to ensure that all employees of the City of Carnation ("City") and all other Workers who work at the City are fully vaccinated against SARS-CoV-2, the novel coronavirus that causes COVID-19 infections. The U.S. Centers for Disease Control and Prevention ("CDC") and the Washington State Department of Health ("DOH") have determined that the COVID-19 vaccines that have received emergency use authorization ("EUA") or full authorization by the U.S. Food & Drug Administration ("FDA") are safe and effective against infection with the coronavirus that causes COVID-19. Individuals have the choice to receive or not receive COVID-19 vaccines that are authorized under an EUA; however, the FDA only requires that this information be given to potential vaccine recipients by the vaccine provider; it does not prohibit entities such as employers from imposing vaccination requirements.

SCOPE

This mandate is a condition of employment or contracting with the City that is applicable to all City "Workers," which includes any person engaged to work as an employee, independent contractor, service provider, volunteer, or through any other formal or informal agreement to provide goods or services, whether compensated or uncompensated, but does not include a visitor or patron. Also, independent contractors are exempt from this Policy if they do not perform any work at a location that is: 1) owned, leased, or used by the City; and 2) no other City Workers are present at the location(s) where the independent contractors are performing work. Independent contractors are also exempt if they are physically present at a City site for only a short period of time and any moments of close physical proximity to others onsite are fleeting; examples include contractors delivering supplies by truck to a construction site where they remain physically distanced from others on the site or a driver for a contracted shipping and delivery service briefly entering a site to pick up parcels for shipping.

This Policy shall be effective for non-represented City employees, volunteers, independent contractors, and service providers on the Effective Date set forth above. For City employees who are members of a bargaining unit, this Policy is subject to good faith bargaining between the City and the bargaining unit prior to going into effect.

POLICY

No later than 4:00 p.m. on *(41 Days after Effective Date)*, 2021, all Workers are required to provide acceptable proof to Acting City Manager that they have received either the second dose in a two-dose series of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Pfizer-BioNTech or Moderna) or that they have received a single-dose of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Johnson & Johnson (J&J)/Janssen. City employees who have not been vaccinated as of the Effective Date of this Policy are entitled to use up to an hour of paid time off per injection to receive their vaccinations, and up to three (3) days of paid time off to recover from any adverse effects of their vaccinations. The paid time off referenced in this Policy is not deducted from the employee's regular leave banks, and shall be recorded as "COVID-19 PTO" on their timesheets. Workers who fail to provide acceptable proof of vaccination on

or before 4:00 p.m. on *(41 Days after Effective Date)*, 2021 will be separated from employment effective as of the end of the work day on *(55 Days after Effective Date)*, 2021.

Anyone applying to become a Worker whose start date would be on or after *(55 Days after Effective Date)*, 2021 is required to provide proof of full vaccination prior to their start date. "Full vaccination" means that it has been at least two weeks since an individual has received either the second dose in a two-dose series of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Pfizer-BioNTech or Moderna) or a single-dose of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Johnson & Johnson (J&J)/Janssen). Additionally, if the CDC, DOH, FDA, or the local health district recommends booster vaccinations, Workers and applicants will need to receive the recommended booster vaccinations at the recommended intervals and provide proof of receipt of the booster vaccination in order to maintain their status as fully vaccinated.

Acceptable proof of full vaccination against COVID-19 includes:

- CDC COVID-19 Vaccination Record Card or photo of the card;
- Documentation of vaccination from a health care provider or electronic health record;
- State immunization information system record; or
- For an individual who was vaccinated outside of the United States, a reasonable equivalent of any of the above.

Personal attestation is not an acceptable form of verification of COVID-19 vaccination. The City may select which form of proof of full vaccination listed above is acceptable to the City; for example, the City may require an employee to provide an electronic health record or State immunization information system record instead of a CDC COVID-19 Vaccination Record Card.

Workers seeking an exemption from this Policy due to a disability, or because of a sincerely held religious belief, must submit a completed Request for Accommodation form to the Acting City Manager to begin the interactive process no later than *(13 Days after Effective Date)*, 2021. Applicants in need of a reasonable accommodation must submit a completed Request for Accommodation form to the Acting City Manager to begin the interactive process within two (2) days after the date of the offer of employment. Accommodations will be granted if they are required by any applicable law or ordinance, provided that the accommodation does not cause the City undue hardship or pose a direct threat to the health and safety of others.

Workers who are not fully vaccinated on or before 4:00 p.m. on *(55 Days after Effective Date)*, 2021 will no longer be employed by, or qualified to contract with, the City after *(55 Days after Effective Date)*, 2021 unless they have been approved for a reasonable accommodation that includes exempting them from this vaccination requirement on or before *(55 Days after Effective Date)*, 2021. Applicants who have not provided proof that they have been fully vaccinated or who have not received a reasonable accommodation exempting them from this vaccination requirement shall not be eligible for hire.

City of Carnation ("Carnation") Disability-Related Accommodation Request Form

For COVID-19 Vaccination Accommodation Requests

To request a disability-related accommodation relating to the Carnation Mandatory COVID-19 Vaccination Policy, please complete section 1 below and have your health care provider complete section 2 before returning this form to the City Clerk/Acting City Manager.

Section 1, to be filled out by Worker:

Name (print):	Date:
Dept.:	Position:
Manager:	Work/Cell Phone:

I am requesting a disability-related accommodation relating to the Carnation Mandatory COVID-19 Vaccination Policy for the following disability:

I understand that Carnation is not required to provide this accommodation if doing so would pose a direct threat to myself or others in the workplace or would create an undue hardship for Carnation, and I have answered the questions on this form truthfully, accurately, and completely.

Worker Signature:	Date:

Section 2, to be filled out by Health Care Provider (an appropriate health care or rehabilitation professional authorized to practice in the State of Washington):

Health Care Provider Certification re: Request for disability-related accommodation relating to Carnation's Mandatory COVID-19 Vaccination Policy

Individual Name: _____

Individual's position: _____

Dear Health Care Provider:

The City of Carnation ("Carnation") requires vaccination against COVID-19 as a condition of employment. The individual named above is seeking an exemption to this policy due to a disability.

Please complete this form to assist Carnation in the reasonable accommodation process. The Genetic Information Nondiscrimination Act of 2008 (GINA) prohibits employers and other entities covered by GINA Title II from requesting or requiring genetic information of an individual or family member of the

individual, except as specifically allowed by this law. To comply with this law, we are asking that you not provide any genetic information when responding to this request for medical information.

1. Does the individual named above have a medical condition that qualifies as a disability under the Americans with Disabilities Act ("ADA") or Washington Law Against Discrimination ("WLAD"), and any other applicable law (e.g., is it a sensory, mental, or physical impairment that has a substantially limiting effect upon their ability to perform their job)? ___yes ___no. If "yes," please answer questions 2 through 11 below.

2. Do any of the clinical considerations established by the Centers for Disease Control and Prevention ("CDC"), online at https://www.cdc.gov/vaccines/covid-19/clinical-considerations/covid-19-vaccines-us.html?CDC_AA_refVal=https%3A%2F%2Fwww.cdc.gov%2Fvaccines%2Fcovid-19%2Finfo-by-product%2Fclinical-considerations.html constitute a disability justifying an accommodation for this individual? ____ yes ____ no. If "yes, please answer questions 3 through 11 below.

3. Please describe the disability:
   _____
   _____

4. What is the duration of the disability? _____

5. Is the disability a medical condition that you diagnose and treat? _____

6. When did you first diagnose or treat this individual for this disability? _____

5. Does the disability necessitate an accommodation relating to Carnation's Mandatory COVID-19 Vaccination Policy, which requires the individual to be fully vaccinated on or before October 18, 2021?[1] ___yes ___no.

6. Does the disability prevent the individual from being fully vaccinated with a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA? ___yes ___no.

7. Will the individual be able to be fully vaccinated with a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA at some future date? ___yes ___no. If "yes," when? _____

8. If the individual's disability prevents the individual from being fully vaccinated with a COVID-19 vaccine, is there an accommodation that would enable the individual to fulfill the essential functions of his or her position (e.g., what reasonable alternatives to the mandatory vaccination

[1] "Fully vaccinated" means that it has been at least two weeks since they have received either the second dose in a two-dose series of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Pfizer-BioNTech or Moderna) or that they have received a single-dose of a COVID-19 vaccine authorized for emergency use, licensed, or otherwise approved by the FDA (e.g., Johnson & Johnson (J&J)/Janssen.

requirement would enable the individual to do their job while effectively reducing infection and serious disease to the same extent as being fully vaccinated for COVID-19, without creating an undue hardship to Carnation)?

_____

_____

9. Length of time the accommodation is needed:_____

10. Describe any alternate accommodations that might address the individual's need for accommodation:

_____

_____

_____

11. Insert any additional information Carnation should consider regarding this accommodation request below:

_____

_____

_____

I certify the above information to be true, accurate, and complete.

Health Care Provider Name (print):	
Health Care Provider Signature:	Date:
Practice Name & Address:	Provider Phone:

Part 3, For Carnation Use Only:

Date of initial request: __/__/____ Date health care provider certification received: __/__/____

Accommodation request:

☐ Approved __/__/____

Describe specific accommodation details:

_____

_____

☐ Denied __/__/____
Describe why accommodation is denied:

_____

_____

Date employee was informed of the grant or denial of accommodation request: __/__/____

Signature:

_____
City of Carnation City Clerk/Acting City Manager

City of Carnation ("Carnation") Religious Accommodation Request Form

For COVID-19 Vaccination Exemption Requests

Part 1: To be completed by worker

Name: _____

Department and Location: _____

Date of request: _____

Immediate supervisor: _____

Position: _____

Please describe the religious beliefs that are the basis for your request for accommodation. Please attach additional pages if needed to document the full response:

_____

_____

_____

Please explain how receiving a COVID-19 vaccine conflicts with your asserted strongly held religious beliefs, observances, or practices. Please attach additional pages if needed to document the full response:

_____

_____

_____

How long have you held these religious beliefs? _____

Have you ever received a vaccination in the past? If so, under what circumstances?

_____

_____

_____

If your religious tenets do not include objections to all vaccines, please explain why the COVID-19 vaccine is objectionable based upon your religious beliefs while at least some others are not. Please attach additional pages if needed to document the full response:

_____

_____

_____

Describe the requested accommodation that would enable you to fulfill the essential functions of your position (e.g., what reasonable alternatives to the mandatory vaccination requirement would enable you to do your job while effectively reducing infection and serious disease to the same extent as being fully vaccinated for COVID-19, without creating an undue hardship to Carnation or a direct threat to yourself or others in the workplace):

_____

_____

Length of time the accommodation is needed: _____

Describe any alternate accommodations that might address your needs:

_____

_____

_____

I have read and understand Carnation's Mandatory COVID-19 Vaccination Policy, and I have answered the questions on this form truthfully, accurately, and completely. My religious beliefs, observations, and practices, which result in this request for a religious accommodation, are sincerely held. I understand that the accommodation requested above may not be granted but that Carnation will attempt to provide a reasonable accommodation that does not create an undue hardship on Carnation. I understand that Carnation may need to obtain supporting documentation regarding my religious practice and beliefs to further evaluate my request for a religious accommodation.

Employee signature: _____ Date: _____

Part 2: To be completed by Carnation City Clerk/Acting City Manager

Evaluation of impacts (if any) of requested accommodation:

_____

_____

_____

Approved: _____ Denied: _____

If the requested accommodation is denied, evaluation of alternative accommodations (if any):

_____

_____

_____

Accommodation provided, if applicable:

_____

If the individual cannot be reasonably accommodated, provide an explanation (e.g., why requested accommodation and any alternatives present an undue hardship to Carnation)[1]:

_____

_____

Date employee was informed of the grant or denial of accommodation request:

_____

Carnation City Clerk/Acting City Manager:

_____ Date: _____

[1] Considerations relevant to undue hardship can include, among other things, the proportion of employees in the workplace who already are partially or fully vaccinated against COVID-19 and the extent of employee contact with non-employees, whose vaccination status could be unknown or who may be ineligible for the vaccine.

City of Carnation Meeting Calendar and Preliminary Agendas

This list is intended to be used for planning purposes only. Agenda items and dates may change.

9/22/2021 SVGA

Hosted by the City of Duvall.

Origin: *Staff:* *Firm Date?* ☑

9/25/2021 Council Committee: PHS

Saturday: Community Evacuation Exercise.

Origin: *Staff:* *Firm Date?* ☑

10/5/2021 City Council

AGENDA BILLS

MOTION Awarding contract for Booster Station construction.

Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐

MOTION Establishing and appointing members to the Tolt Commons Plaza and Downtown Public Parking Plan Advisory Committee.

Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐

OTHER BUSINESS

DISCUSSION Draft Stormwater Utility ordinance

Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

DISCUSSION 2022 Proposed Preliminary Budget.

Origin: City Manager *Staff:* City Manager *Firm Date?* ☑

10/11/2021 Parks Board

Parks Board Meeting.

Origin: *Staff:* *Firm Date?* ☐

10/12/2021 City Council

OTHER BUSINESS

DISCUSSION 2022 Budget Workshop:
-rate and cost of living comparisons
-SHB 1406 revenue grant for affordable senior housing [see Ord 928, RCW 82.14.540(9)]

Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

10/19/2021 City Council

AGENDA BILLS

ORDINANCE Establishing a Stormwater Utility.
Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

MOTION Approving agreement for Hearing Examiner Services.
Origin: City Manager *Staff:* City Planner *Firm Date?* ☐

MOTION Appointing a city manager.
Origin: Council of the Whole *Staff:* City Clerk *Firm Date?* ☐

MOTION PSA and MOU with the American Legion for acquisition of the real property located at 31951 E. Bird St.
Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

OTHER BUSINESS

DISCUSSION Recommended amendments to CMC 15.17 Development Agreements, 15.48 Density & Dimensions, 15.72 Parking, 15.110 Marijuana Related Uses
Origin: 2021 Docket *Staff:* City Planner *Firm Date?* ☐

DISCUSSION Continued review of 2022 Proposed Preliminary Budget.
Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

STAFF REPORT

DISCUSSION Seattle Public Utilities
Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

10/26/2021 Planning Board

UNFINISHED BUSINESS

DISCUSSION Update to Comprehensive Plan Goals.
Origin: 2022 Docket *Staff:* City Planner *Firm Date?* ☐

11/2/2021 City Council

AGENDA BILLS

MOTION Appointing members to the Salary Commission.
Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐

OTHER BUSINESS

DISCUSSION 2020 Update to the Carnation Comprehensive Emergency Management Plan.
Origin: Public Health & Safety *Staff:* City Manager *Firm Date?* ☐

PUBLIC HEARING

DISCUSSION 2022 Preliminary Budget and Revenue Sources
Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

11/16/2021 City Council

AGENDA BILLS

ORDINANCE Adopting 2022 Property Tax Levy.
Origin: City Manager *Staff:* City Clerk *Firm Date?* ☐

PUBLIC HEARING

DISCUSSION 2022 Budget.
Origin: City Manager *Staff:* City Manager *Firm Date?* ☐

11/24/2021 SVGA

Hosted by the Snoqualmie Tribe.
Origin: *Staff:* *Firm Date?* ☐

12/7/2021 City Council

AGENDA BILLS

ORDINANCE Adopting the 2022 Budget.

Origin: City Manager *Staff:* Treasurer *Firm Date?* ☐

PUBLIC HEARING

DISCUSSION Recommended amendments to CMC 15.09.200 Mailing Requirements, Bonding Requirements, 15.18 Land Use Approvals, 15.40 Permitted Uses, 15.17 Development Agreements, 15.48 Density & Dimensions, 15.72 Parking, 15.110 Marijuana Related Uses

Origin: 2021 Docket *Staff:* City Planner *Firm Date?* ☐

12/21/2021 City Council

Regular Meeting

Origin: *Staff:* *Firm Date?* ☐

1/15/2022 City Council

AGENDA BILLS

ORDINANCE Adopt amendments to CMC 15.09.200 Mailing Requirements, Bonding Requirements, 15.18 Land Use Approvals, 15.40 Permitted Uses, 15.17 Development Agreements, 15.48 Density & Dimensions, 15.72 Parking, 15.110 Marijuana Related Uses

Origin: 2021 Docket *Staff:* City Planner *Firm Date?* ☐

1/25/2022 Planning Board

NEW BUSINESS

DISCUSSION 2022 Docket

Origin: 2022 Docket *Staff:* City Planner *Firm Date?* ☐

1/26/2022 SVGA

Hosted by the City of Carnation.

Origin: *Staff:* *Firm Date?* ☐

2/15/2022 City Council

STAFF REPORT

DISCUSSION Seattle Public Utilities (second Tuesday every other month)

Origin: *Staff:* *Firm Date?* ☐

3/23/2022 SVGA

Hosted by the City of Snoqualmie.

Origin: *Staff:* *Firm Date?* ☐

4/19/2022 City Council

STAFF REPORT

DISCUSSION Seattle Public Utilities (second Tuesday every other month)

Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

5/25/2022 SVGA

Hosted by the City of North Bend.

Origin: *Staff:* *Firm Date?* ☐

6/21/2022 City Council

STAFF REPORT

DISCUSSION Seattle Public Utilities (second Tuesday every other month)

Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

8/16/2022 City Council

STAFF REPORT

DISCUSSION Seattle Public Utilities (second Tuesday every other month)

Origin: Council of the Whole *Staff:* City Manager *Firm Date?* ☐

9/6/2022 City Council

OTHER BUSINESS

DISCUSSION CaTV Tax 5.04.030(F)&(H).

Origin: Ordinance 914 *Staff:* City Manager *Firm Date?* ☐

9/28/2022 SVGA

Hosted by the City of Duvall.

Origin: *Staff:* *Firm Date?* ☐